

Shyware Data Processing Agreement

Effective date: upon publication at <https://shyware.fyi/legal/privacy/dpia/dpa/>

This Data Processing Agreement is incorporated into the Shyware Terms of Service, order form, master services agreement, or other written agreement that references it. It applies when Shyware processes personal data on behalf of a customer in connection with Shyware SDK, hosted services, support, reconciliation, audit, security, or related services.

Parties and Roles

The customer is the controller of customer personal data. Shyware is the processor of customer personal data. If the customer acts as a processor for a third-party controller, Shyware acts as the customer's subprocessor and the customer represents that it has authority to appoint Shyware.

Definitions

Terms such as controller, processor, personal data, processing, data subject, personal data breach, and supervisory authority have the meanings given in applicable data protection law. Applicable data protection law includes the GDPR, UK GDPR, Swiss data protection law, and other privacy or data protection laws that apply to the processing.

Processing Details

The subject matter, duration, nature, purpose, data categories, and data subject categories are described in Annex A.

Customer Instructions

Shyware will process customer personal data only on documented customer instructions, including instructions in the agreement, product configuration, authorized administrator actions, support requests, and this DPA. Shyware will promptly inform the customer if Shyware believes an instruction infringes applicable data protection law, unless prohibited by law from doing so.

Confidentiality

Shyware will ensure that personnel authorized to process customer personal data are bound by confidentiality obligations or are subject to appropriate statutory confidentiality obligations.

Security

Shyware will implement and maintain appropriate technical and organizational measures designed to protect customer personal data against unauthorized or unlawful processing and against accidental loss, destruction, damage, alteration, or disclosure. The baseline measures are described in Annex B.

Subprocessors

The customer grants Shyware general authorization to engage subprocessors. Shyware will impose written data protection obligations on subprocessors that are no less protective in substance than this DPA for the services they provide.

Shyware will maintain a current subprocessor list at or linked from <https://shyware.fyi/legal/privacy/dpia/d>. Shyware will provide notice of new subprocessors through that page, email, account notice, or another reasonable mechanism. The customer may object to a new subprocessor on reasonable data protection grounds within thirty days after notice. The parties will work in good faith to resolve the objection. If the objection cannot be resolved, the customer may stop using the affected service component.

Shyware remains responsible to the customer for a subprocessor's performance of its data protection obligations.

Data Subject Requests

Taking into account the nature of the processing, Shyware will assist the customer through appropriate technical and organizational measures to respond to data subject requests. Shyware will not independently respond to a data subject request concerning customer personal data except to direct the requester to the customer or as legally required.

Assistance With Compliance

Taking into account the nature of the processing and information available to Shyware, Shyware will reasonably assist the customer with obligations concerning security of processing, personal data breach notification, data protection impact assessments, and prior consultation with supervisory authorities.

Personal Data Breach

Shyware will notify the customer without undue delay after becoming aware of a personal data breach affecting customer personal data. The notice will include available information reasonably needed by the customer to meet its own breach notification obligations. Shyware may provide information in phases as investigation progresses.

Return or Deletion

At the end of the services, or upon the customer's documented instruction, Shyware will delete or return customer personal data unless applicable law requires retention. Deletion may be subject to reasonable backup, archival, security, legal, or audit retention periods, provided retained data remains protected under this DPA.

Audits and Information

Shyware will make available information reasonably necessary to demonstrate compliance with this DPA. The customer may request an audit no more than once per year unless required by a supervisory authority or following a confirmed personal data breach. Audits must be conducted during normal business hours, with reasonable notice, under confidentiality obligations, and in a manner that does not compromise security, confidentiality, or other customers' data.

Shyware may satisfy audit requests by providing relevant security documentation, third-party audit reports, certifications, penetration test summaries, architecture summaries, subprocessor information, or written responses.

International Transfers

Shyware will not transfer customer personal data from the EEA, UK, or Switzerland to a third country unless a valid transfer mechanism applies. Transfer mechanisms may include standard contractual clauses, the UK international data transfer addendum, adequacy decisions, binding corporate rules, or another lawful mechanism available under applicable data protection law.

If standard contractual clauses are required, they are incorporated by reference as follows:

Transfer Scenario	SCC Module
Customer controller to Shyware processor	Module Two
Customer processor to Shyware subprocessor	Module Three

For Module Two or Module Three, the Annexes to this DPA provide the processing description, security measures, and subprocessor information.

Government and Third-Party Requests

Shyware will not disclose customer personal data to a government authority or third party unless required by law or authorized by the customer. If legally permitted, Shyware will notify the customer of the request and allow the customer to seek protective treatment.

Customer Obligations

The customer is responsible for:

Obligation	Description
Lawful basis	Establishing and documenting the lawful basis for customer processing.
Notices	Providing required privacy notices to data subjects.

Obligation	Description
Instructions	Ensuring instructions to Shyware are lawful and documented.
Data minimization	Configuring the SDK to send only data needed for the customer's purposes.
Sensitive data	Avoiding special-category data, payment credentials, government identifiers, passwords, secrets, or other restricted data unless expressly agreed in writing.
Rights requests	Receiving, evaluating, and responding to data subject requests.
Retention	Setting retention and deletion requirements.
End-user relationship	Managing the relationship with the customer's users and customers.

Order of Precedence

If this DPA conflicts with the agreement, this DPA controls for data protection matters. If standard contractual clauses apply and conflict with this DPA or the agreement, the standard contractual clauses control for the conflicting transfer issue.

Annex A: Processing Details

Topic	Description
Subject matter	Shyware SDK, hosted services, reconciliation services, audit services, support, security, maintenance, and related processing.
Duration	For the term of the agreement and any post-termination period needed for deletion, return, backup retention, legal compliance, audit, or dispute resolution.
Nature of processing	Collection, receipt, transmission, storage, structuring, sealing, hashing, retrieval, reconciliation, deletion, security monitoring, audit, support, and service operation.
Purpose	Providing Shyware services to the customer, securing the services, supporting customer workflows, enabling reconciliation and audit, complying with lawful customer instructions, and maintaining service integrity.

Topic	Description
Data subjects	Customer end users, customer personnel, authorized administrators, support contacts, and other individuals whose data the customer submits or configures for processing.
Personal data categories	Opaque identifiers, session identifiers, account identifiers, pseudonymous identity values, product event data, timestamps, device/browser metadata, tenant metadata, reconciliation records, audit records, support data, and administrator contact details.
Sensitive data	Not intended for special-category data, biometric templates, payment card data, government identifiers, passwords, authentication secrets, or children's data unless expressly agreed in writing.
Frequency	Continuous or event-based depending on customer integration and service use.

Annex B: Technical and Organizational Measures

Control Area	Measure
Access control	Role-based access, least-privilege practices, administrator access restriction, and access review.
Encryption in transit	TLS or equivalent transport protection for service communications.
Encryption at rest	Encryption for hosted databases, object storage, and backups where applicable.
Key management	Managed key custody, separation, rotation, and access limitation appropriate to the deployment.
Logical separation	Tenant-aware controls and separation of customer data in hosted service components.
Logging and monitoring	Operational, access, and security logs for service protection and investigation.
Vulnerability management	Dependency review, patching, remediation, and vulnerability intake.

Control Area	Measure
Incident response	Triage, containment, investigation, remediation, and customer notification workflow.
Personnel confidentiality	Confidentiality obligations for personnel and contractors with access to customer personal data.
Subprocessor controls	Written subprocessor obligations and review of service-critical subprocessors.
Backup and recovery	Backup, restoration, and continuity controls appropriate to the hosted service.
Data minimization	SDK and architecture controls designed to reduce unnecessary identity-behavior linkage in canonical processing state, without treating off-chain reconcile, endpoint, identity-provider, wallet, telemetry, support, or customer-configured workflows as covered by the canonical-state guarantee.

Annex C: Subprocessor Categories

Category	Purpose
Cloud infrastructure	Hosting, storage, networking, backups, and security infrastructure.
Database and storage	Hosted persistence, replication, backup, and recovery.
Identity verification	User-authenticated reconciliation, recovery, or verification workflows when enabled.
Monitoring and security	Logging, alerting, vulnerability management, abuse prevention, and incident response.
Support and communications	Customer support, legal notices, transactional email, and operational communications.

The current named subprocessor list will be maintained at or linked from <https://shyware.fyi/legal/privacy/d>